

25STCV15547 25STCV15547

County: los-angeles

Division: Civil Law and Motion

Department: 516

Hearing date: 2026-09-02

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Case Number: 25STCV15547 Hearing Date: September 2, 2026 Dept: 516

Judge James I. Montgomery

Department 516

Hearing Date: September 2, 2026

Case Name: Barron v. Cecil Hotel, et al.

Case

No.: 25STCV15547

Matter: Demurrer with Motion to Strike

Moving

Party: Defendant Ranger Global

Security

Responding Party: Plaintiff Joe Barron

Tentative

Ruling: Defendant Ranger Global

Security's demurrer is sustained.

Defendant

Ranger Global Security's motion to strike is rendered moot.

On May 25,

2025, Joe Barron ("Plaintiff") filed this action against Defendants Cecil

JHotel, 248 Haynes Hotel Association LLC, a New Jersey limited liability company, SB Hotel LA, LLC, a Delaware limited liability company, Baron Property Group, LLC, the Eberly Company, John Doe, and Does 1 through 100. The Complaint alleges five causes of action for: (1) assault; (2) battery; (3) intentional infliction of emotional distress; negligence; and (5) negligent hiring, supervision, and retention.

On April 27, 2026, Plaintiff filed an amendment to name Defendant Ranger Global Security ("Ranger Global") as Doe 1.

Ranger demurs to all five causes of action for failure to allege sufficient facts and on the basis of uncertainty. Ranger also moves to strike portions of Plaintiff's Complaint. Plaintiff opposes.

Legal Standard

A demurrer is an objection to a pleading, the grounds for which are apparent from either the face of the complaint or a matter of which the court may take judicial notice. (Code Civ. Proc., § 430.30, subd. (a); see also *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The purpose of a demurrer is to challenge the sufficiency of a pleading by raising questions of law. (Postley v. Harvey (1984) 153 Cal.App.3d 280, 286.) "In the construction of a pleading, for the purpose of determining its effect, its allegations must be liberally construed, with a view to substantial justice between the parties." (Code Civ. Proc., § 452.) The court " 'treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law . . . ' " (Berkley v. Dowds (2007) 152 Cal.App.4th 518, 525.) In applying these standards, the court liberally construes the complaint to determine whether a cause of action has been stated. (Picton v. Anderson Union High School Dist. (1996) 50 Cal.App.4th 726, 733.)

"The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading. (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws

of this state, a court rule, or an order of the court.” (Code Civ. Proc., § 436.) “Immaterial” or “irrelevant” matters include allegations not essential to the claim, allegations neither pertinent to nor supported by an otherwise sufficient claim or a demand for judgment requesting relief not supported by the allegations of the complaint. (Code Civ. Proc., § 431.10, subds. (b)(1)-(3).)

Analysis

Meet and
Confer

Pursuant to Code of Civil Procedure

section 430.41, “a demurring party is required to meet and confer in person, by telephone, or video conference with the party that filed the pleading. . . .” (Code Civ. Proc. § 430.41, subd. (a).) A moving party in a motion to strike must meet and confer before filing the motion. (Code Civ. Proc. § 435.5, subd. (a).)

Ranger

Global contends that the parties met and conferred via email. (Knauss Decl., ¶¶ 2-3.) Email correspondence is insufficient to meet the requirements of Code of Civil Procedure sections, 430.41, subdivision (a) and 435.5, subdivision (a). Thus, the parties did not meet and confer. In the interests of judicial efficiency, the Court will address the merits of Ranger Global’s demurrer and motion to strike.

Demurrer

Ranger

Global demurs on the basis of uncertainty and does not allege any facts showing how Ranger Global is liable, makes contradictory allegations, and fails to allege sufficient facts.

Uncertainty

Per Code of Civil Procedure section

430.10, subdivision (f), a demurrer must be sustained if a pleading is uncertain. (Code Civ. Proc., § 430.10, subd. (f).) The term uncertain means “ambiguous and unintelligible.” (Ibid.) However, demurrers for

uncertainty will not be sustained unless “the pleading is so incomprehensi[ve] that a defendant could not reasonably respond.” (A.J. Fistes Corp. v. GDL Best Contractors, Inc. (2019) 38 Cal.App.5th 677, 695 , quoting Mahan v. Charles W. Chan Ins. Agency, Inc. (2017) 14 Cal.App.5th 841, 848, fn.3 (A.J. Fistes Corp.).)

The Court

finds that as to the first three causes of action the pleading is uncertain because Plaintiff alleges his causes of action against several Defendants, but in Plaintiff’s prayer for relief he seeks damages only from John Doe. (Compl., 12:19-13:8.) Defendant is not put on notice as to whether the causes of action are alleged against it.

Thus, the

Court sustains the demurrer on this basis as to the first three causes of action.

Failure to Allege Sufficient

Facts

Vicarious

Liability

“Unless

required by or under the authority of law to employ that particular agent, a principal is responsible to third persons for the negligence of his agent in the transaction of the business of the agency, including wrongful acts committed by such agent in and as a part of the transaction of such business, and for his willful omission to fulfill the obligations of the principal.” (Civ. Code, § 2338.) “Under [the] doctrine [of respondeat superior], ‘[t]he cases which have considered recovery against the master for accidents occurring within the scope and during the period of employment have established a general rule of liability with a few exceptions for cases where the employee has substantially deviated from his duties for personal purposes’ ([Citation.]) Generally, the issue of scope of employment is a question of fact.” (Perez v. Van Groningen & Sons, Inc. (1986) 41 Cal.3d 962, 967.)

Ranger

Global argues that Plaintiff fails to allege sufficient facts in the Complaint to allege that Ranger Global can be held liable for any alleged torts committed

by John Doe. The argument is well taken.

In

opposition, Plaintiff argues that he alleges that John Doe was an employee and/or agent of Defendants, including DOES 1 through 100. (Opp., 8:22-24; Compl., ¶¶ 4-6.) Plaintiff also alleges that John Doe was acting within the scope of his employment. (Comp., ¶¶ 13, 25.)

However,

the Court finds that the allegations throughout the Complaint are insufficient to allege vicarious liability. While the scope of employment is a question of fact, it is necessary for Plaintiff to allege facts, not state the legal terms in his Complaint.

Thus, the

Court sustains Ranger Global's demurrer on this basis.

First

Cause of Action – Assault

“The

essential elements of a cause of action for assault are: (1) defendant acted with intent to cause harmful or offensive contact, or threatened to touch plaintiff in a harmful or offensive manner; (2) plaintiff reasonably believed [he] was about to be touched in a harmful or offensive manner or it reasonably appeared to plaintiff that defendant was about to carry out the threat; (3) plaintiff did not consent to defendant's conduct; (4) plaintiff was harmed; and (5) defendant's conduct was a substantial factor in causing plaintiff's harm.” (So v. Shin (2013) 212 Cal.App.4th 652, 668–669 (So).)

Assuming

that Plaintiff can allege that Ranger Global is vicariously liable, Plaintiff alleges that he was not hit or touched by John Doe, but then Plaintiff also seeks a claim for battery, alleging that he was hit; these allegations are contradictory. Additionally, the harm that Plaintiff seeks to recover is for being “physically and psychologically damaged, incurred medical bills, sustained disability and had to retain an attorney and has incurred legal costs in connection therewith in order to prosecute this action.” (Compl., ¶ 17.) Plaintiff does not allege facts to establish the harm that allegedly occurred as a result of the alleged assault, Plaintiff uses

conclusory statements.

Thus, the

Court sustains Ranger Global's demurrer as to the first cause of action.

Second

Cause of Action – Battery

“The

essential elements of a cause of action for battery are: (1) defendant touched plaintiff, or caused plaintiff to be touched, with the intent to harm or offend plaintiff; (2) plaintiff did not consent to the touching; (3) plaintiff was harmed or offended by defendant's conduct; and (4) a reasonable person in plaintiff's position would have been offended by the touching.” (So, supra, 212 Cal.App.4th at p. 669.)

Plaintiff

makes identical allegations in his battery cause of action as with his assault claim. (Compl., ¶¶ 25-32.) The allegations made are bare as to Defendant Ranger Global. Additionally, the allegations regarding whether John Doe made physical contact with Plaintiff contradict.

Thus, the

Court sustains Ranger Global's demurrer as to the second cause of action.

Third

Cause of Action - Intentional Infliction of Emotional Distress

“A cause of

action for intentional infliction of emotional distress exists when there is

““(1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct.”” (Hughes v. Pair (2009) 46 Cal.4th 1035, 1050.) “Liability for intentional infliction of emotional distress ““does not extend to mere insults, indignities, threats, annoyances, petty oppressions, or other trivialities.” (Id. at p. 1051.)

Similarly,

the third cause of action contains bare assertions that do not allege the elements for a viable cause of action. Plaintiff alleges that the physical attack and assault are conduct that warrants Ranger Global's liability. Because Plaintiff's third cause of action is based on the alleged claims under the first and second cause of action, Plaintiff's third cause of action also fails.

Thus, the

Court sustains Ranger Global's demurrer as to the third cause of action.

Fourth

and Fifth- Negligence and Negligent Hiring, Retention, and

Supervision

““The

elements of a cause of action for negligence are well established. They are

‘(a) a legal duty to use due care; (b) a breach of such legal

duty; [and] (c) the breach as the proximate or legal cause of the

resulting injury.’” (Ladd v. County of San Mateo (1996) 12 Cal.4th 913,

917–918.) “To establish negligent supervision, a plaintiff must show that a

person in a supervisory position over the actor had prior knowledge of the

actor's propensity to do the bad act.” (Z.V. v. County of Riverside

(2015) 238 Cal.App.4th 889, 902.) ““Liability for negligent hiring ... is based

upon the reasoning that if an enterprise hires individuals with characteristics

which might pose a danger to customers or other employees, the enterprise

should bear the loss caused by the wrongdoing of its incompetent or unfit

employees.” (Phillips v. TLC Plumbing, Inc. (2009) 172 Cal.App.4th 1133,

1139.)

Ranger

Global argues that Plaintiff has not alleged a duty and Plaintiff cannot

recover for his psychological damages without meeting the heightened

requirements of negligent infliction of emotional distress.

As

addressed throughout this ruling, the Complaint lacks allegations of how Ranger

Global is liable for John Doe's alleged conduct. Without such allegations, the

Court cannot ascertain whether Plaintiff has alleged a duty. Additionally, the

allegations within the Complaint are bare and are not ultimate facts. As to the

issue of negligent infliction of emotional distress, Plaintiff is seeking

monetary damages as well; thus, he can allege a claim for negligence. As to the fifth cause of action, Plaintiff has not alleged facts that Ranger Global hired John Doe; thus, he has not alleged sufficient facts.

Therefore,
the Court sustains Ranger Global's demurrer as to the fourth and fifth causes of action.

Motion
to Strike

Ranger
Global moves to strike portions of Plaintiff's Complaint. However, because the Court has sustained its demurrer as to Plaintiff's Complaint the motion to strike is rendered moot.

Thus,
Ranger Global's motion to strike is rendered moot.

Leave to Amend

Leave to amend must be allowed
where there is a reasonable possibility of successful amendment. (See Goodman v. Kennedy (1976) 18 Cal.3d 335, 349 [court shall not "sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment"]; Kong v. City of Hawaiian Gardens Redevelopment Agency (2002) 108 Cal.App.4th 1028, 1037 ["A demurrer should not be sustained without leave to amend if the complaint, liberally construed, can state a cause of action under any theory or if there is a reasonable possibility the defect can be cured by amendment."]; Vaccaro v. Kaiman (1998) 63 Cal.App.4th 761, 768 ["When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend."].) The burden is on the complainant to show the Court that the pleading can be successfully amended. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)

The Court
finds that Plaintiff has met his burden of establishing that leave to amend should be granted. The Court will allow Plaintiff the opportunity to amend his Complaint.

Conclusion

Defendant

Ranger Global Security's demurrer is sustained as to all five causes of action.

Defendant

Ranger Global Security's motion to strike is rendered moot.

Plaintiff

shall have leave to amend and must file an amended Complaint by October 2, 2026.